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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

The

**LEGAL AUTHORITY ROADMAP AND
SAC PARAGRAPH MAP**

following matrix maps controlling legal authority to the specific paragraphs of the proposed Second Amended Complaint (SAC) and shows how each cause of action is anchored in California law and supported by specific evidentiary exhibits.

TABLE A: AUTHORITY MATRIX

Authority	Holding	SAC Paragraph	SAC Count
<u>Kougasian v. TMSL, Inc.</u> (2004) 118 Cal.App.4th 1028	Independent action in equity to set aside a judgment procured by extrinsic fraud is not barred by res judicata.	¶¶ 15, 67, 117	Count 1
<u>Kulchar v. Kulchar</u> (1969) 1 Cal.3d 467	Extrinsic fraud occurs when a party is fraudulently prevented from presenting their claim or defense.	¶¶ 95, 115	Count 1
<u>Mycogen Corp. v. Monsanto Co.</u> (2002) 28 Cal.4th 888	Primary rights theory determines whether an issue is barred by collateral estoppel.	¶ 24	All

Authority	Holding	SAC Paragraph	SAC Count
<u>Park v. Bd. of Trustees</u> (2017) 2 Cal.5th 1057	Requires identification of the specific injury-producing act underlying each claim.	¶ 108	All
Evidence Code § 623	Estoppel by conduct: A party cannot contradict a position adopted through prior silence when there was a duty to speak.	¶¶ 77, 104	Estoppel Frame
Evidence Code § 1414(b)	Authentication by acquiescence: Evidence that a party has treated a writing as authentic.	¶¶ 81, 105	Estoppel Frame
<u>Doctors' Co. v. Superior Court</u> (1989) 49 Cal.3d 39	Insurer may be liable for aiding and abetting when acting outside its normal role.	¶¶ 54, 140	Count 4

Authority	Holding	SAC Paragraph	SAC Count
Bus. & Prof. Code § 6128(a)	Misdemeanor and civil liability for attorney deceit or collusion intended to deceive the court.	¶¶ 148-156	Count 6
<u>Flatley v. Mauro</u> (2006) 39 Cal.4th 299	Extortionate or illegal conduct as a matter of law is not protected petitioning activity.	¶¶ 108, 153	Exception
<u>Action Apartment Ass'n v. City of Santa Monica</u> (2007) 41 Cal.4th 1232	Extrinsic fraud constitutes an exception to the litigation privilege.	¶¶ 108, 137	Exception

Authority	Holding	SAC Paragraph	SAC Count
<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399	Elements of constructive fraud under Civ. Code § 1573 (fiduciary or confidential advantage; misleading act or nondisclosure; inducement; harm).	¶¶ 158–163	Count 7
Civ. Code § 1573	Constructive fraud; breach of duty without proof of intent to deceive.	¶¶ 158–165	Count 7
<u>Applied Equipment Corp. v. Litton Saudi Arabia Ltd.</u> (1994) 7 Cal.4th 503	Civil conspiracy is not an independent tort; it attaches to an underlying wrongful act.	¶ 141A	Count 4 (theory)

TABLE B: SAC PARAGRAPH MAP

SAC ¶	Topic	Controlling Authority	Evidentiary Anchor (Exhibit A–R)
¶¶ 1–5	Preliminary State- ment	<u>Kougasian</u> , 118 Cal.App.4th 1028	Exhibit D (Admission)
¶ 24	Primary Rights distinct	<u>Mycogen</u> , 28 Cal.4th 888	Exhibit A (Underlying ROA)
¶¶ 29–33	883-day out-of- court lulling	Evidence Code § 623	Exhibit I (Deposition excerpts)
¶¶ 34–39	May 2023 file transfer	<u>Kimmel v. Goland</u> , 51 Cal.3d 202	Exhibit A, J
¶¶ 40–47	Phase Two misrep- resenta- tions	<u>Kulchar</u> , 1 Cal.3d 467	Exhibit B (MILs), C (Hearing Tr.)
¶¶ 48–57	CSAA direction and rati- fication	<u>Doctors’ Co.</u> , 49 Cal.3d 39	Exhibit F (CSAA Denial)

SAC ¶	Topic	Controlling Authority	Evidentiary Anchor (Exhibit A–R)
¶¶ 58–63	April 16, 2025 “pro- vided by Dolan”	Evidence Code § 1220	Exhibit D (RT 7 Admission)
¶¶ 86–94	Judicial Estoppel	<u>Aguilar v. Lerner</u> , 32 Cal.4th 974	Exhibit C vs. Exhibit D
¶¶ 108–109	Pleading- stage immuni- ties	<u>Park</u> , 2 Cal.5th 1057; <u>Flatley</u> , 39 Cal.4th 299	Exhibit R (Gravamen Matrix)
¶¶ 114–120	Count 1: Va- catur/Extrinsic Fraud	<u>Kulchar</u> ; <u>Kougasian</u>	Complete Record
¶¶ 138– 143, 141A	Count 4: Aiding and Abet- ting, Ratifica- tion, Civil Conspir- acy (theory)	Civ. Code §§ 2307, 2310, 2338; <u>Doctors’ Co.</u> ; <u>Applied Equipment</u>	Exhibit F, A, J

SAC ¶	Topic	Controlling Authority	Evidentiary Anchor (Exhibit A–R)
¶¶ 147–156	Count 6: Section 6128(a) Deceit	Bus. & Prof. Code § 6128(a)	Exhibits B, C, D, H
¶¶ 157–165	Count 7: Con- structive Fraud	Civ. Code § 1573; <u>Assilzadeh</u>	Exhibits N, D, J, M

Causes of Action Considered and Declined (Tactical Record)

Candidate cause	Why not pleaded as a separate count
Abuse of process	Gravamen here is deceptive procurement and extrinsic channels, not post-judgment misuse of process (<u>Rusheen v. Cohen</u> boundary on “necessarily related” conduct).
Malicious prosecution	No favorable termination of the underlying action as required for that tort.
Negligent misrepresentation	Subsumed and weaker than Count 7 on these facts; would dilute the scienter narrative for Count 3.
Intentional infliction of emotional distress	Collateral to the fraud-on-the-tribunal gravamen; invites litigation-privilege attacks.
UCL (Bus. & Prof. Code § 17200)	No consumer or competitor posture; privilege-heavy for this record.

Candidate cause	Why not pleaded as a separate count
Spoliation	Not an independent tort in California (<u>Cedars-Sinai Medical Center v. Superior Court</u> (1998) 18 Cal.4th 1).
Standalone civil conspiracy	Barred as an independent tort; pleaded as a joint-liability theory in Count 4 (<u>Applied Equipment</u> , supra).
CCP §§ 128.5, 128.7, 2023.010 / 2023.030; B&P § 6068; Rule 3.3; Pen. Code §§ 118, 132, 134, 182	Framed as sanctions, illegality, and <u>Flatley</u> proof, not as freestanding civil counts in this complaint.